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COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Express-Preservation Record-Variation and Briefing Order

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered February 2, 2026

This order creates one isolated premise for a counterfactual appellate exercise. Assume that, when Blue Ember completed its case on October 10, 2025, Granite Heron moved under Rule 50(a) not only on causation but also expressly on failure to mitigate. The assumed motion identified the October 2 Cobalt Finch capacity offer, its December 2 campaign date, and Granite Heron's contention that declining that opportunity left avoidable delay.

Assume further that Granite Heron stated the exact judgment sought. It requested a net mitigation deduction of \$1,500,000, calculated as \$1,800,000 in delay allegedly avoidable through a successful accelerated campaign minus \$300,000 in reasonable transfer and qualification expense. It asked the district court to rule that no reasonable jury could award more than \$2,700,000 on Blue Ember's \$4,200,000 gross-damages theory.

The assumed October 10 presentation described mitigation as an affirmative defense on which Granite Heron retained the burden. It cited the held Durham suite, Cobalt Finch's relevant general capability, the staged transfer calendar, and Dr. Elodie Park's economic analysis. The district court denied that never-occurred request before Granite Heron presented the remainder of its evidence and stated that the issue could be renewed after the full record closed.

Assumed close-of-evidence renewal

For this exercise only, assume that Granite Heron renewed the same mitigation request on October 14 at the close of all evidence. The renewal again named the Cobalt Finch slot, the proposed December 2 start, the \$1,800,000 gross-avoidance figure, the \$300,000 alternative expense, the resulting \$1,500,000 net deduction, and the requested \$2,700,000 maximum judgment.

The assumed renewal relied on evidence received after Blue Ember rested without changing the issue. Dr. Nia Calder had confirmed genuine capacity, suitable general systems, unfinished BE-214 qualification, a November readiness gate, and no guarantee of success. Park had applied the alternative calendar to Kellan Brooks's bounded delay model. Granite Heron argued that these additional details strengthened the ground already specified rather than supplying a new postverdict theory.

Assume that the district court denied the renewed motion and submitted separate questions on gross damages and mitigation. The jury then found \$4,200,000 in gross loss and a \$300,000 net mitigation deduction. The assumed motion did not ask the jury to alter the original-lot or replacement-expense findings; it directed the proposed \$1,500,000 reduction solely to avoidable delay.

This second premise preserves continuity among the assumed pre-verdict request, the November 10 Rule 50(b) motion, and appellate review. No general reservation or silent incorporation is used. The branch instead supplies the precise mitigation ground, supporting facts, burden allocation, arithmetic, and relief that Rule 50(a)(2) requires a movant to state before submission.

Assumed notice and opportunity to cure

The training premise also assumes meaningful notice to Blue Ember. At both pre-verdict stages, the district court asked Blue Ember whether it wanted additional argument, clarification from Calder, or a limited reopening concerning program readiness, incremental expense, expected timing, or Park's avoidance calculation. Blue Ember opposed the motion on legal sufficiency and stated that its existing witnesses and exhibits supplied the response it wished the jury to consider.

Assume that Blue Ember emphasized Cobalt Finch's incomplete program qualification, the short acceptance window, unresolved method allocation, staged cancellation exposure, and absence of a contemporaneous probability of success. It argued that reasonable jurors could credit a real opportunity while discounting Park's full model. The court allowed counsel to identify every responsive item and found no unfair surprise before denying the assumed renewal.

The assumed exchange serves Rule 50's notice-and-cure function. It permits the district judge to evaluate the asserted evidentiary deficiency while correction remains possible, and it prevents the movant from selecting mitigation only after seeing the jury's number. The premise does not predetermine whether Granite Heron ultimately satisfies the demanding merits standard for judgment as a matter of law.

Nothing here changes the witnesses, offer terms, facility status, damages components, verdict, original judgment, posttrial filings, or December 15 amended judgment. Only the content of the two assumed Rule 50(a) presentations and the accompanying opportunity to respond differ for training purposes. All other district facts remain fixed unless this order says otherwise.

Isolation and counterfactual briefing directions

This counterfactual source does not alter Granite Heron's Initial Rule 50(a) Motion or Granite Heron's Close-of-All-Evidence Rule 50(a) Motion, which occupy actual joint-appendix pages 373 through 382. Those two actual district sources remain causation-only motions and expressly leave mitigation to the jury. The hypothetical language above is not inserted into either document, is not treated as a correction, and cannot prove what occurred in the actual litigation history.

The isolated premise creates no second district judgment. The October 14 verdict remains \$4,200,000 gross less the jury's \$300,000 deduction, the October 15 judgment remains \$3,900,000, and the December 15 order remains the instrument imposing a \$1,500,000 deduction and entering the \$2,700,000 amended judgment. The branch changes only the preservation analysis applied to that same posttrial disposition.

Blue Ember's counterfactual opening brief and the counterfactual joint appendix are due March 9, 2026. Granite Heron's response is due April 8, and Blue Ember's reply is due April 20. The branch will be submitted on the briefs on May 6 unless a later counterfactual order changes that method. Every filing must use only the never-occurred docket number printed above.

No source from this branch may be placed on, cited as an event from, or confused with the actual appellate docket. The clerk shall maintain separate storage, separate identifiers, and the two warnings at the beginning of every branch document. Composite Jurists March, Rowan, and Slate approve these training directions without expressing a view on the hypothetical merits.